

HOUSE BILL 301

By Martin G

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 13 and Title 33, relative to
housing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding
the following new part:

7-51-2601.

As used in this part:

(1) "Healthcare provider" means a healthcare professional licensed
under title 63 or 68 whose scope of practice includes the diagnosis and treatment
of alcohol, drug, and substance abuse;

(2) "Local government" means a county, incorporated city or town, or
metropolitan government;

(3) "Operator" means the lawful owner of a sober living home or a person
or entity designated by such lawful owner to have primary responsibility for the
daily operation of such sober living home; and

(4) "Sober living home" means an alcohol-free and drug-free residence
where unrelated adults who are recovering from alcohol, drug, or substance
abuse choose to live together in a supportive environment during their recovery
where no formal alcohol, drug, or substance abuse treatment services are
provided.

7-51-2602.

(a) The governing body of a local government may adopt an ordinance or resolution:

(1) Requiring a sober living home to be located at a distance of not less than one thousand feet (1,000') from a kindergarten through grade twelve (K-12) educational facility, preschool, or daycare facility;

(2) Regulating the location or operation of a sober living home within the jurisdiction of the local government; and

(3) Requiring that an operator, prior to authorizing an individual to reside in a sober living home, receive a clinical referral from a licensed healthcare provider indicating that placement in a sober living home is a medical necessity for the individual based on the individual's status as recovering from alcohol, drug, or substance abuse.

(b) An ordinance or resolution adopted pursuant to subsection (a) must comply with the Fair Housing Act, as amended, (42 U.S.C. §§ 3601 et seq.) and the Americans with Disabilities Act of 1990 (42 U.S.C. §§ 12101 et seq.).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.